

16. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
*HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES
FILED BY:
TENTATIVE RULING:

Plaintiff Eric Hooker ("Plaintiff") filed a Motion for Attorney's Fees, Costs and Expenses on July 3, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$253,891.00 in attorneys' fees and \$22,612.08 in costs as against defendant Kia America, Inc. ("Kia"). The Motion for Fees and Costs was initially set for hearing on October 20, 2025. The motion was continued several times, most recently to permit the filing of a sur-reply. The motion is currently set for hearing on February 2, 2026. The motion is opposed.

Background

As against Kia, this matter was resolved by way of a settlement agreement between the Plaintiff and Kia. See Compendium of Exhibits filed July 3, 2025 ("Plaintiff's Exhibits"), **Exhibit 2**. Among the terms was a settlement payment of \$22,500 payable to Plaintiff by Kia. *Id.* at p. 3. The agreement also stipulates that Plaintiff is the prevailing party and provides for recovery of attorneys' fees "reasonably and necessarily incurred by Plaintiff in connection with the commencement and prosecution of the Action." *Id.* at pp. 4-5.

The Motion for Fees and Costs is supported by the Declaration of Brianna A. Means filed on July 3, 2025, the Declaration of Michelle A. Cook filed on July 3, 2025, the Declaration of Gregory T. Babbitt filed on July 3, 2025, and the Declaration of Christopher P. Barry ("Barry Decl.") filed on July 3, 2025 (collectively, the "Supporting Declarations").

The Declaration of Christopher P. Barry describes the firm's billing practices and provides an overall summary of the total billed hours, the hourly rates by timekeeper and the total amount billed (\$253,891.00) with a breakdown by timekeeper. See Barry Decl., ¶13.

The declaration further breaks down the billings by categories and phases of litigation related tasks. See *id.* at ¶14 *et seq.* This includes items such as "158.1 hours/\$66,699.00" for discovery related work, "18.7 hours/\$8,415.00" for writ proceedings (regarding "drafting a writ to challenge the trial court's ruling on a demurrer filed by Kia."), and "322.9 hours/\$148,762.00" attributed to "Litigation/Trial" related matters. *Id.* Plaintiff proffers historical information regarding other litigated matters and billing rates approved in such matters. See *id.* at ¶17 *et seq.*

Mr. Barry's declaration and the other submitted Supporting Declarations detail the billing attorneys' and paralegals' background and professional experience, and provide information regarding their roles and work in the case.

Kia filed an Opposition on October 7, 2025, along with a set of Evidentiary Objections filed that same date ("Kia's Objections").

Plaintiff filed a Rely on October 13, 2025, along with a supplemental Declaration of Christopher P. Barry on the same date ("Supp. Barry Decl."). That supplemental declaration attaches a spreadsheet of detailed billing time entries. Supp. Barry Decl., **Exhibit 1**.

Kia filed a second set of Evidentiary Objections ("Kia's Further Objections"). Kia's Further Objections were resolved by the Court granting a continuance of the hearing and permitting Kia to file a sur-reply.

Defendant KIA America, Inc. filed a Sur-Reply in Support of Its Opposition on January 16, 2026. The Sur-Reply included the Declaration of Corinne D. Orquiola ("Orquiola Decl."). That declaration summarizes Kia's review of the proffered billing entries and totaled certain categories of billing which it intensified as unnecessary or otherwise not properly recoverable. See Orquiola Decl., ¶¶2-3 and **Exhibit A** thereto (\$7,406.56 attributable to fruitless writ petition, \$17,551.00 related to certain causes of action for which Kia contends prevailing party attorneys' fees are unavailable, \$9,599 related to discovery motions "NEVER SERVED/FILED," \$466.50 related to "ADMINISTRATIVE, INTER-OFFICE, DUPLICATIVE WORK," \$4,790.00 for billings described as "VAGUE AND UNINTELLIGIBLE").

Kia's Objections

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED. This objection appears to be blank and does not refer to any portion of the submitted moving papers.

Objection No. 4: OVERRULED. The moving party is not citing "unpublished decisions" for purposes of argument as to controlling legal authority. The moving party is referring to cases in which the moving party's attorneys have been involved. Moreover, there is sufficient foundation as to the declarant's knowledge of the history and outcome of such matters so as to proffer the compilation of information about hourly rates approved in those matters. Lastly, the Court has discretion to receive and consider the summary in this fashion. The "voluminous writing rule" allows admission of a statement or summary reflecting numerous accounts or documents "'which cannot be examined in court without great loss of time.'" *Globe Mfg. Co. v. Harvey* (1921) 185 Cal. 255, 261; see *Schellinger Brothers v. Cotter* (2016) 2 Cal.App.5th 984, 1008. Nor does the Court find that the probative value of the summary is substantially outweighed by the probability that its admission will necessitate undue consumption of time and create a substantial danger of undue prejudice, of confusing the issues, or of misleading the jury. Evid. Code § 352.

Objection No. 5: OVERRULED. See reasons set forth above regarding Objection No. 4.

Objection No. 6: OVERRULED. See reasons set forth above regarding Objection No. 4.

Objection No. 7: OVERRULED.

Objection No. 8: OVERRULED.

Objection No. 9: OVERRULED.

Objection No. 10. The reference appears to be erroneous and there is no separate Objection No. 10.

Objection No. 11: OVERRULED.

Objection No. 11(sic): OVERRULED. There appears to be a second separate objection labeled Objection No. 11.

Objection No. 12: OVERRULED.

Objection No. 13: OVERRULED. The Court considers this ruling by another Superior Court merely as demonstrative of the declarant's testimony about the methodology utilized and not as binding authority in any sense.

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

Courts have observed that a categorical breakout of time expended by each billing attorney and paralegal is a proper method of review and "an especially helpful compromise between reporting hours in the aggregate (which is easy to review, but lacks informative detail) and generating a complete line-by-line billing report (which offers great detail, but tends to obscure the forest for the trees)." *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 700, quoting *In re HPL Techs., Inc., Secs. Litig.* (N.D. Cal. 2005) 366 F. Supp. 2d 912, 920.

The Court has reviewed the stated hours and the nature of the legal work reflected therein, considering, among other things, the categories of work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court reduces the requested fees by the \$7,406.56 attributable to Plaintiff's unsuccessful writ petition. The Court also reduces the amounts sought for discovery related work ("158.1 hours/\$66,699.00") by \$12,500.00. The Court also reduces the award by \$5,256.50 for administrative and other internal tasks whose reasonableness and value to the conduct of the litigation is unclear and/or marginal. The reductions total \$25,163.06.

The Court has considered and rejects Kia's contention that Plaintiff cannot recover for legal fees incurred to litigate Kia's demurrer, or otherwise, because certain asserted claims do not provide for recovery of attorneys' fees. Kia's arguments miss the mark. Plaintiff is entitled to recover fees by virtue of the Settlement Agreement. That agreement provides that Plaintiff is the prevailing party and Kia agreed to pay the attorneys' fees "reasonably and necessarily incurred by Plaintiff in connection with the commencement and prosecution of the Action." See Agreement, pp. 4-5, Plaintiff's Exhibits, **Exhibit 2**. Plaintiff's right to recover attorneys' fees at this stage is not dependent on the nature of any of the particular causes of action.

The Court finds that the balance of the hours sought and charges therefor were reasonable and necessary to the conduct of the litigation.

Costs

Costs are addressed in detail in the ruling on the concurrent motion to tax costs.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Plaintiff is awarded and shall recover from Kia attorneys' fees in the sum of **\$228,727.94**.
3. Plaintiff is awarded and shall recover from Kia costs of suit in the sum of **\$21,500.27**.
4. Plaintiff to prepare a proposed form of order after hearing.

17. 9:00 AM CASE NUMBER: N25-1830
CASE NAME: CLAIM OF: AVERY BENITEZ AVERY BENITEZ
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

Plaintiff Don Benitez ("Plaintiff") filed a Petition for Approval of Compromise on or about September 12, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on February 2, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order lodged with the moving papers.

Courtroom Clerk's session

18. 10:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
COURT TRIAL HEARING BIFURCATED AS TO THE ISSUE OF THE OPERATING AGREEMENT.
FILED BY: